

TENTATIVE RULING

Case: Touchstone Lake Association v. Washington Unified School District
Case No. CV2025-2330

Hearing Date: April 9, 2026 **Department Fourteen** **9:00 a.m.**

Defendant Washington Unified School District's demurrer to plaintiff Touchstone Lake Association's complaint as to the first cause of action for breach of CC&Rs is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [the elements of breach of contract are: (a) the existence of the contract, (b) plaintiff's performance or excuse for nonperformance, (c) defendant's breach; and (e) the resulting damages to the plaintiff]; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881; Complaint, ¶¶ 1-2, 5-9, 25-27.) The Court finds that defendant fails to provide sufficient legal authority that it cannot be liable for this cause of action as a matter of law. (Cal. Rules of Court, rule 3.1113(b); Memo. Pts. & Auths., pp. 5-7.) The Court further finds that defendant fails to establish that this cause of action is untimely. (*Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 400 [a demurrer based on statute of limitations may be sustained if the defect clearly and affirmatively appears on the face of the complaint and matters subject to judicial notice; Complaint, ¶¶ 8-19, 22-27, Exhibits A, B, D, E, F.]

Defendant's demurrer to plaintiff's complaint as to the second cause of action for breach of the implied covenant of good faith and fair dealing is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Oasis West Realty, LLC, supra*, 51 Cal.4th at p. 821; *Del E. Webb Corp., supra*, 123 Cal.App.3d at p. 604; *Donabedian, supra*, 116 Cal.App.4th at p. 994; *Ion Equip. Corp., supra*, 110 Cal.App.3d at p. 881; Complaint, ¶¶ 1-2, 5-9, 28-33.) The Court finds that defendant fails to provide sufficient legal authority that it cannot be liable for this cause of action as a matter of law. (Cal. Rules of Court, rule 3.1113(b); Memo. Pts. & Auths., pp. 5-7.) The Court further finds that defendant fails to establish that this cause of action is untimely. (*Committee for Sound Water & Land Development, supra*, 79 Cal.App.5th at p. 400; Complaint, ¶¶ 8-19, 22, 28-33, Exhibits A, B, D, E, F.)

Defendant's demurrer to plaintiff's complaint as to the third cause of action for declaratory relief is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that this cause of action is duplicative, unnecessary, and improper. (Memo. Pts. & Auths. p. 5; Complaint, ¶¶ 34-37.) The Court finds that defendant fails to provide sufficient legal authority that it cannot be liable for this cause of action as a matter of law. (Cal. Rules of Court, rule 3.1113(b); Memo. Pts. & Auths., pp. 5-7.) The Court further finds that defendant fails to establish that this cause of action is untimely. (*Committee for Sound Water & Land Development, supra*, 79 Cal.App.5th at p. 400; Complaint, ¶¶ 8-19, 22, 34-37, Exhibits A, B, D, E, F.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2023-0312

Hearing Date: **April 9, 2026** **Department Eight** **1:30 p.m.**

On the Court's own motion, plaintiff Xinyao Zhou's motion for leave to file third amended complaint is **CONTINUED** to **May 8, 2026**, at 1:30 p.m. in Department Eight.